

25STCV24621 25STCV24621

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-02

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Case Number: 25STCV24621 Hearing Date: July 2, 2026 Dept: 617

Dept.

617

Date:

7-2-26

Case

#: 25STCV24621

Trial

Date: N/A

VACATE DEFAULT JUDGMENT

MOVING

PARTY: Defendants, Progressive Casualty Insurance Company and United Financial
Casualty Company

RESPONDING

PARTY: Plaintiffs, Philip Addington and Xavier Nailing

RELIEF

REQUESTED

Motion

to Vacate Default Judgment

SUMMARY

OF ACTION

Xavier

Nailing hit a coyote while driving Philip Addington's car, causing the airbags to deploy. Addington then filed a claim with his insurer, Progressive Casualty Insurance Company. Nailing and Addington allege a claims adjustor stated the car was totaled because the airbag was deployed. Nailing and Addington disagree with this determination and Progressive's estimate of the car's worth. They filed a complaint against Progressive and its underwriter, United Financial Casualty Company, for breach of contract, breach of fiduciary duty, fraud in the inducement, intentional interference with contract, and conversion. Default judgment was entered against Defendants on December 8, 2025 for \$10,692.49.

RULING: Granted.

Request

for Judicial Notice: Granted.

The Court takes judicial notice of the existence of documents filed in this case and other cases. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of the existence of the district court order and the truth of the results reached therein. (Id. at pp. 885-86.)

Defendants

move to vacate the default judgment entered against them on grounds of improper service and lack of actual notice. Plaintiffs oppose the motion, challenging its timeliness. Defendants' motion is granted because they have shown the default judgment is void for lack of service.

A

court may set aside any void judgment or order. (Code Civ. Proc., § 473, subd. (d).) "[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) Where service is proper but does not result in actual notice to a party in time to defend the action, a court has discretion to grant relief from a default judgment. (Code Civ. Proc., § 473.5; Anastos v. Lee (2004) 118 Cal.App.4th 1314, 1319.) "The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment

against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).) The motion must be accompanied by “an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Id. § 473.5, subd. (b).)

Defendants

sufficiently show that they were not served. The proofs of service indicate that service was made on Defendants’ registered agent, CT Corporation System, on August 25, 2025. Defendants submit the declaration of Tamara Kling, a Representation Services Advisor at CT “familiar with the records CT creates in the ordinary course of business related to CT’s receipt, processing, storage, and transmittal of the legal process it receives.” [Kling Decl. ¶ 2.] Kling states that after searching CT’s records, she was unable to find any record of CT receiving the summons and complaint as well as other documents purportedly served on Defendants. [Id. ¶ 5.] Plaintiffs present no evidence in response confirming valid service. The lack of records evidencing receipt of the summons and complaint indicates CT was not served with the documents.

Plaintiffs’

timeliness challenge is unavailing. Where, as here, a judgment is valid on its face, but uncontested evidence shows that service was improper, a motion to vacate the judgment as void may be made at any time. (Thompson v. Cook (1942) 20 Cal.2d 564, 569-73.) Defendants’ motion is thus timely and the motion is granted.

The

default and default judgment are vacated.

Defendants

to separately file the proposed responsive pleading within 10 days.

Defendants

to give notice.